

--SUMMARY--

Decision No. 2438/17

25-May-2018

J.Dimovski

- Negligence (duty of care) (occupational health and safety)
- Transfer of costs

The worker of a masonry business slipped on stairs at a construction site. The site was managed by a construction management company. The masonry company appealed a decision of the Appeals Resolution Officer denying transfer of the costs of the claim to the construction management company.

The accident employer submitted that the management company breached the standard of care owed by s. 72 of O. Reg. 213/91 under the Occupational Health and Safety Act, to clear snow, ice and slippery material.

The Tribunal has accepted statutory duties set out in OHSA as useful in establishing a standard of reasonable conduct. In this case, there was no indication that the management company was investigated, charged or convicted under OSHA regarding this accident. Further, there was a lack of evidence to corroborate the worker's statement that the stairs were hazardous or cluttered by snow and black ice at the time of the accident. The Vice-Chair accepted that parts of the site were wet but there was insufficient evidence of snow, ice or other slippery material. Evidence did not establish that the management company breached its duty of care under the OSHA regulations. The Vice-Chair also noted that the worker would have been aware of the wet conditions.

The accident was not caused by negligence of the management company. The masonry company was not entitled to transfer of costs of the claim to the management company. The appeal was dismissed.

7 Pages

References: Act Citation

- WSIA

Other Case Reference

- [w3118s]
- OTHER STATUTES CONSIDERED: Occupational Health and Safety Act, R.S.O. 1990, c. O.1, O. Reg.213/91, s. 72
- TRIBUNAL DECISIONS CONSIDERED: 59/94 consd, 432/00, 1987/13 consd

Style of Cause:

Neutral Citation: 2018 ONWSIAT 1730



# **WORKPLACE SAFETY AND INSURANCE APPEALS TRIBUNAL**

## **DECISION NO. 2438/17**

**BEFORE:**

J. Dimovski: Vice-Chair

**HEARING:**

August 9, 2017 at Toronto  
Oral

**DATE OF DECISION:**

May 25, 2018

**NEUTRAL CITATION:**

2018 ONWSIAT 1730

**DECISION(S) UNDER APPEAL:** WSIB ARO decision dated July 28, 2014

**APPEARANCES:**

**For the worker:**

Did not participate

**For the employer K:**

D. Brooks, Paralegal

**For the employer M:**

M. D'Ambrosio, Paralegal

**Interpreter:**

N/A

**Workplace Safety and Insurance  
Appeals Tribunal**

505 University Avenue 7<sup>th</sup> Floor  
Toronto ON M5G 2P2

**Tribunal d'appel de la sécurité professionnelle  
et de l'assurance contre les accidents du travail**

505, avenue University, 7<sup>e</sup> étage  
Toronto ON M5G 2P2

## REASONS

### (i) Issue

[1] On January 29, 2013, the worker slipped on a stair and fell while carrying a masonry block down a stairwell in the course of his employment for a masonry business (K). The masonry block fell and injured his right hand requiring surgery. The Board attributed costs of the worker's claim to K. At the time of the workplace accident, the worker was working at a construction site managed by a construction management firm (M). K claims the worker's injury was caused by M's negligence. In particular, K claims that M did not keep the worksite dry and as a result, the worker slipped and fell on a wet stair causing his injury. K wants the claims costs transferred to M. The Board denied K's request after determining M was not negligent.

[2] Thus, the issue in dispute is:

- whether the costs related to the worker's January 29, 2013 compensable accident should be transferred from the account of K to M.

### (ii) Background to appeal proceedings

[3] In a Form 6 dated February 13, 2013, this now 24 year old worker described his accident as follows:

While working at the job site, going down stairs with a cement block in my Rt hand...I slipped, fell down the stairs and the block crushed my right hand (middle & right finger).

[4] In a Form 7 dated February 1, 2013, the accident employer K similarly described the accident as follows:

The worker was walking down a flight of stairs from the ground parking level to Parking level 2. The worker was carrying a "half masonry block" in one hand (approximately 5 lbs). As he proceeded down the steps he slipped and fell. He put his hand out to brace his fall and pinched his fingers between brick and the ground. The worker crushed the two middle fingers on his right hand, breaking them. The worker was taken to the nearest hospital where he was treated and then released.

[5] The Board allowed the worker's claim and subsequently determined the workplace accident had resulted in a permanent impairment warranting a 3% Non-Economic Loss (NEL) award and other benefits.

[6] In a letter dated February 21, 2013, K claimed the Board should transfer 100% of the costs of the worker's claim to M as the "standing water in the stairways and pathway and that the conditions of the work site in general were extremely wet". As M was responsible for the construction site, and as it failed to keep the stairways safe, K argued M was negligent.

[7] In submissions dated April 19, 2013, M denied K's allegations. Aside from disputing some accident particulars, i.e. the size of the masonry block involved in the accident, M noted that it followed its obligation set out in the *Occupational Health & Safety Act* (OHSA). For example, M states it ensured that the access and egress points to the stairway were clear. M also claims that K failed to meet its obligations by properly training the worker to work safely. Further, M argues the wet saw should have been located in closer proximity to the worker's work area "rather than across the other side of the parking garage and a floor below, on the project".

[8] In a letter dated October 31, 2013, the Board denied M was negligent. The Board's Transfer of Cost Adjuster wrote:

At the time of the incident, the worker was bringing a masonry block to be cut by a wet saw which was located on a different floor, on parking level 2 of the project. The incident occurred when he was using the staircase to get to parking level 2.

The representatives for [M] provided a copy of the Incident Investigation Report that indicates the weather conditions were rainy with the temperature above freezing at 2 degrees Celsius. This has not been disputed by [K].

[M] advises the access and egress areas of the project were kept free and clear of debris. Photographs provided by both parties indicate a wet stairwell, free of debris.

It is not reasonable for [M] to keep the construction site dry from rainy weather conditions. There is an onus on a worker to govern their actions accordingly, taking into consideration the weather conditions at the time.

There is no evidence to indicate that [M] was responsible for the injuries to the worker.

[9] In submissions dated May 28, 2013 and as set out in its Intent to Object form dated November 28, 2013, K argued M had failed treat the slippery conditions with sand or similar materials which was a breach s. 72 of Ontario Regulation 213/91 of the OHSA. Further, K argued M did not post warning to workers of a hazard and as result, K argued, M breached s. 44 of the OHSA.

[10] The ARO upheld the Board's decision to deny a transfer of costs.

### (iii) Analysis

[11] As the accident occurred in 2013, the *Workplace Safety and Insurance Act, 1997* (WSIA), as amended, is applicable to this appeal. All statutory references in this decision are to the WSIA, as amended, unless otherwise stated.

[12] Section 84 provides that if an accident to a worker of a Schedule 1 employer was caused by the negligence of another Schedule 1 employer or worker, the Board may direct that all or part of the accident claim costs can be charged to the account of the negligent employer and that employer's rate group. In this appeal, there is no dispute that both K and M were Schedule 1 employers and that, at all material times, the worker was in the course of his employment. Given this, I am satisfied s. 84 is applicable to this appeal.

[13] In accordance with s. 126, I have applied the applicable Board policy to this appeal. *Operational Policy Manual* (OPM) Document No. 14-05-01 "Transfer of Costs" is applicable to the circumstances of this appeal. An employer who believes that an accident may have been due to the negligence of another employer or worker of the employer, may provide details of this on the first report of accident that is submitted to the Board following a workplace injury. The policy provides that in common law, "negligence" is defined as:

- failing to do something which a reasonable and prudent person would do, or
- doing something which a reasonable and prudent person would not do.

On a case by case basis, the WSIB applies common law principles to determine if another employer is negligent in a work-related accident.

[14] In *Decision No. 1987/13*, a Tribunal Panel noted the following with respect to transfer of cost cases:

[30] The test used when considering whether some or all costs ought to be transferred is whether one employer's negligence caused or contributed to the workplace accident at issue. The onus is on the appellant employer to prove, on the balance of probabilities, the negligence of the second employer (see *Decisions No. 1600/07* and *432/00*). Further, it is the common law of negligence that applies to this analysis. Tribunal *Decision No. 129/11* provides the following helpful definition of "negligence" as follows:

[18] ...One useful definition of "negligence" is found in the Canadian Law Dictionary, by John Yogis, Q.C., Professor of Law at Dalhousie University. The Canadian Law Dictionary defines negligence as follows:

Negligence is the omitting to do something that a reasonable man would do or the doing something which a reasonable man would not do... It is really the absence of such care as it was the duty of the defendant to use. The care taken by a prudent man has always been the rule laid down – a regard to caution such a man of ordinary prudence would observe [as cited from the 1942 decision of *Bishop versus McDonald*].

[19] Tribunal *Decision No. 1694/07* also set out the Tribunal's approach to the common law of negligence, in part as follows:

The approach does not differ significantly from the approach taken by the courts and followed by previous Panels of the Tribunal. The decision-makers first determine whether or not an inference may be made, on the balance of probabilities, that the second employer was negligent. If the inference is made, resulting in a prima facie case of negligence, the second employer must rebut it with an alternative explanation of how the accident may have occurred without negligence on the second employer's part. This was the approach taken by the Court in the Fontaine case.

[15] A number of Tribunal decisions have addressed the elements of the tort of negligence (see, *Decisions Nos. 17/89, 602/91, 276/92, 857/97, 2137/99, 432/00, 1600/07* and *571/15*). *Decision No. 432/00* provides a useful summary of the elements of the tort of negligence. At para. 79, *Decision No. 432/00* provides:

The elements of the tort of negligence, as set out in a number of Tribunal decisions<sup>1</sup> are as follows:

- (a) There must be a relationship between the parties (i.e., between the injured worker and the second employer) creating a duty to exercise reasonable care.
- (b) The duty must be breached. That is, the conduct of the second employer must have fallen below the required standard of care
- (c) The worker must have suffered damage (i.e., injury) and the injury must have been caused by the second employer's failure to conform to the standard of care.
- (d) The damage must not be too remote.

[16] As M managed the construction site, including maintaining a safe worksite, for which the worker had been hired to perform work at, I find there was a relationship between the parties creating a duty to exercise reasonable care.

[17] The next question is whether a duty was breached. In essence, K argues that the standard of care owed by M has been established by the statutory obligations set out in the OHSA. In particular, K submits M breached s. 72 of Ont. Reg. 213/91 which provides as follows:

72. A work area, a route to and from a work area and a scaffold platform on which work is being performed shall be maintained at all times in a condition that does not endanger workers and, without limiting the generality of the foregoing,

(a) shall be kept clear of obstructions;

(b) shall be clear of snow, ice or other slippery material; and

(c) shall be treated with sand or similar material when necessary to ensure a firm footing.

[18] The Tribunal has accepted statutory duties set out in the OHSA are useful in establishing a standard of reasonable conduct. *Decision No. 59/94* addressed the approach as follows:

Applying the reasoning of the Court in Saskatchewan Wheat Pool, we conclude that the statutory formulation of duties owed by employers and others towards workers in the OHSA is a useful standard of reasonable conduct. Similarly, evidence of a breach of a duty owed under the OHSA which causes injury to a worker is evidence of negligence.

[19] In its Intent to Object Form, K wrote that at “no time did we state that the condition of the site must be dry”. However, K argues M failed to fulfill its duties in accordance with s. 72 of O. Reg. 213/91 – Construction Projects under the OHSA which provides a work area: a) shall be kept clear of obstacles; (b) shall be clear of snow, ice or other slippery material; and (c) shall be treated with sand and similar material when necessary to ensure a firm footing.

[20] While K alleges that M breached its obligations under the OHSA, there was no documentary evidence in the case materials which indicates M was ever investigated, charged or convicted under the OHSA in relation to the circumstances surrounding the workplace accident in 2013.

[21] In the absence of an OHSA conviction, K relied on the worker’s testimony to support its position. The worker testified that he was carrying the masonry block down to P2 to have it cut by a saw. P2 had some cover from the weather. He stated he slipped on stairs covered by a mixture of ice, snow and black ice. This testimony is not consistent, however, with the contemporaneous documentary evidence. In fact, there is little substantial contemporaneous evidence which corroborates the worker’s statement that the stairwell was hazardous or cluttered by snow and black ice at the time of the accident.

[22] While the medical evidence most contemporaneous to the workplace accident support the worker slipped and fell down stairs, it did not make reference to ice, snow or any other slippery material. In the University Health Network (UHN) social work consultation note dated January 29, 2013, the worker was recorded as stating he slipped on a “wet floor down stairs”. In another UHN clinical note dated January 29, 2013, the worker was recorded as stating he had “slipped on wet floor down stairs”. In a Form 8 dated January 29, 2013, the UHN Emergency Department described the worker as having fallen down “slippery stairs”.

[23] M’s incident reporting also does not refer to or implicate snow, ice or any other slippery material as causing the worker’s fall. Additionally, there is no evidence, including contemporaneous documentary evidence from either employer which addressed that snow, ice or any other slippery material had posed safety concerns in the stairwell. In a document referred to as “safety talks”, dated February 11, 2013, there was no discussion by the either employer about

slippery material which required attention. K also did not provide any evidentiary context to understand the reasons it would place the saw in a dry place if the pathway to it, the stairwell, was as cluttered as it claimed.

[24] I also note that the Government of Canada climate data for January 29, 2013, contained in the case record, provides that the temperature at the time of the worker's accident (approximately 11 am) was 2.1 degrees Celsius, with conditions involving rain showers and fog. Given the data from January 28, 2013, the weather temperature was above freezing temperatures for more 24 hours at the time of the accident.

[25] The worker also stated the cement stairs were not ribbed to provide some grip for those walking up or down them. The pictures of the stairwell included in the case materials show that the stairs were ribbed and there was a temporary wood railing as well. While the worker stated he wore brand new boots at the time of the accident, it is not clear from the evidence before me how this alone would have rendered the wet steps, which did not seem to have been frozen over from the weather, slippery. In the end, the contemporaneous does not establish that the worker's fall was caused by snow, ice or other slippery condition. Given the lapse in time between the workplace accident and the worker's testimony at the Tribunal, I prefer the contemporaneous evidence respecting the conditions of the steps at the time of the 2013 workplace accident.

[26] While I can accept the floor and exposed parts of the site were wet at the time, there is insufficient evidence to establish there was any snow, ice or other slippery material at the time of the worker's fall to support M breached its duty of care under the regulations of OHSA. Even if the stairwell was wet, K has not established how M failed to do something "which a reasonable and prudent person would do" or do something "which a reasonable and prudent person would not do". I find that, as the worker would have already been aware of the wet conditions of the job, a lack of warning would not be sufficient alone to establish that M breached its duty of care. Accordingly, I find on a balance of probabilities that the worker's accident was not caused by M's negligence. Therefore, I deny K's claim that the costs of the worker's claim should be transferred to M.

**DISPOSITION**

[27]           The appeal is denied.

DATED: May 25, 2018

SIGNED: J. Dimovski